Temporary
4428

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of FOUR THOUSAND ($4,000.00) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of ERNST KOEPPS, residing in Germany, whom after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is situate in the Village of Lancaster, County of Erie, State of New York, and described as follows: to-wit:

> Part of Lot Number Two (2), Section Ten (10), Township Eleven (11), Range Six (6), of the Holland Land Company's survey and known as Numbers 134 and 136 Central Avenue.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian.

(b) Property is encumbered with a mortgage of $2,000.00, which is long past due and mortgagee has instituted foreclosure proceedings. Income to the property is insufficient to pay the interest on mortgage, taxes and up-keep.

(c) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided.

CALVIN COOLIDGE

THE WHITE HOUSE,
April 20, 1926.

[No. 4428]